

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,)
AMERICAN TRUCKING ASSOCIATIONS, INC.)

Complainant,)

v.)

FMC Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT)
ASSOCIATION, INC.; CONSOLIDATED CHASSIS)
MANAGEMENT, LLC; CMA CGM S.A.; COSCO)
SHIPPING LINES CO. LTD.; EVERGREEN LINE)
JOINT SERVICE AGREEMENT, FMC NO. 011982;)
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK)
A/S; MSC MEDITERRANEAN SHIPPING)
COMPANY S.A.; OCEAN NETWORK EXPRESS)
PTE. LTD.; WAN HAI LINES LTD.; YANG MING)
MARINE TRANSPORT CORP.; AND)
ZIM INTEGRATED SHIPPING SERVICES,)

Respondents.)

RESPONDENTS' PETITION FOR RECONSIDERATION

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	)	
Respondents.	)	
	)	

RESPONDENTS' PETITION FOR RECONSIDERATION

Pursuant to 46 C.F.R. § 502.261, Respondents Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; Evergreen Line Joint Services Agreement, FMC No. 011982; Hapag-Lloyd AG; HMM Co. Ltd; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Yang Ming Marine Transport Corp; and Zim Integrated Shipping Services (individually a “Respondent” and jointly the “Respondents”) hereby petition the Federal Maritime Commission (“FMC” or “Commission”) for reconsideration of certain aspects of its February 23, 2024, Order Affirming Initial Decision and Remanding for Further Proceedings (“Decision”).

I. INTRODUCTION

The Decision contains significant legal and factual errors as well as erroneous conclusions unsupported by evidence. These errors are significant because they form the basis for key findings upon which the Decision is based. While significant, the Decision's legal errors are beyond the scope of this Petition.¹ A primary subject of this Petition, the Decision's factual errors, evidences a fundamental misinterpretation of how critical elements of the various and diverse models for provision of chassis in the subject markets actually operate. As a result, the Decision reaches the wrong legal and factual conclusions, and its cursory treatment of complex issues creates uncertainty. Without any attempt to provide an explanation as to what is to replace the practices now deemed unlawful or to provide any time for stakeholders to discuss and arrange for alternatives, the Decision threatens to disrupt the entire intermodal network.

Among the material factual errors contained in the Decision are the Commission's findings that:

- *Chassis owned or leased by motor carriers (so-called "Trucker-owned/leased wheels", or "TOW") are not a viable and competitive source of chassis at the four major intermodal locations upon which the Decision focused.* This finding is contradicted by the record. This error is fundamental to every one of the Commission's conclusions and the manner in which it reached those conclusions. In fact, TOW is a major – in some cases a majority – of chassis in operation at these locations. This factual error alone requires reconsideration of the entire Decision.
- *Chassis usage agreements are exclusive arrangements.* This finding is plainly contradicted by the terms of the agreements themselves and the ready availability of chassis choice in contributory pools. Further, none of the various pools constitutes the sole source of chassis in a given market.

¹ The Decision contains numerous legal errors, such as the Commission misapplying F.R.C.P. 19 to assess whether the chassis providers would be subjected to a substantial risk of being ordered to satisfy multiple or inconsistent obligations when F.R.C.P. 19 expressly calls for that analysis to be performed with respect to the existing parties (i.e., the ocean carriers) and the Commission's conclusion that it has authority to order carriers to remain in pools. However, this petition does not discuss the legal errors because of the limitations on petitions for reconsideration contained in the Commission's regulations. Omission of the legal errors from this petition is without prejudice to all legal rights and remedies Respondents have with respect to such errors including, without limitation, appeal to the U.S. Court of Appeals.

- *The chassis supply needed to move millions of containers each year will be unaffected by the Decision because motor carriers “have an interest” in an adequate supply of safe chassis.* The Commission conflates the general interest of the motor carriers in the existence of a supply of chassis for their use with a willingness and capability to enter into contracts that will ensure that supply. There is no basis in the record for the latter conclusion. In fact, the evidence in the record, to say nothing of publicly available information of which the Commission is aware, shows relatively small and discrete investments by drayage carriers transporting international containers and rare – if any – instances of a willingness to preposition chassis at marine and rail intermodal terminals.
- *Ocean Carrier organized pooling arrangements determine who an Intermodal Equipment Provider (“IEP”) bills for chassis usage.* The Commission determined that the CCM Operations Manual includes rules that allow the IEP to bill the motor carriers for chassis usage. It does not. The record is clear that the contributory pools managed by CCM have no role in deciding who, whether, or how a customer of an IEP that is a pool contributor gets billed.

Finally, the Commission drew a critical distinction between whether it was appropriate to enter an order with respect to the issue of withdrawal from interoperable pools in Memphis and Chicago and all other issues before it. While the Commission indicated that it was reviewing factors considered in part by the ALJ, it in fact articulated a new factor. In deciding that the ALJ was correct to conclude that she could not yet render an opinion on the issue of withdrawal from interoperable pools – the Commission determined that, if the appropriate remedy is a cease-and-desist order, it must consider whether that order can issue and provide meaningful relief without requiring action or forbearance by non-regulated entities. While the Commission correctly concluded that the complexity of ocean carrier arrangements with IEPs made it impossible to rule on the withdrawal issue at the summary judgement phase, the Commission applied the same test to the other issues before it and concluded that relief could be granted on a summary judgment basis with no meaningful discussion, explanation, or analysis. Because this standard was articulated and applied for the first time in the Decision, the parties were not afforded the opportunity to brief that issue. Had they been given an opportunity to brief this issue, the Respondents would have averred that the same complexities the Commission rightly pointed to

with respect to withdrawal from interoperable pools exist in all of the subject markets, including with respect to the Pool of Pools. Accordingly, all issues relating to interoperable pools in all four geographic locations that were the subject of the Decision should have been remanded for further proceedings.

II. LEGAL STANDARD APPLICABLE TO PETITIONS FOR RECONSIDERATION

Rule 261 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.261 states:

Within thirty (30) days after issuance of a final decision or order by the Commission, any party may file a petition for reconsideration. Such petition shall be limited to 25 pages in length and shall be served in conformity with the requirements of subpart H of this part. A petition will be subject to summary rejection unless it:

(1) Specifies that there has been a change in material fact or in applicable law, which change has occurred after issuance of the decision or order;

(2) Identifies a substantive error in material fact contained in the decision or order;
or

(3) Addresses a finding, conclusion or other matter upon which the party has not previously had the opportunity to comment or which was not addressed in the briefs or arguments of any party. Petitions which merely elaborate upon or repeat arguments made prior to the decision or order will not be received. A petition shall be verified if verification of the original pleading is required and shall not operate as a stay of any rule or order of the Commission.

As set forth in greater detail below, the Commission's Decision contains both substantive errors of material fact and findings/conclusions not addressed in the briefs or arguments of either party.

III. THE COMMISSION'S DECISION CONTAINS MULTIPLE SUBSTANTIVE ERRORS OF MATERIAL FACT

The Commission's Decision contains multiple substantive errors of material fact, each of which is addressed below. These errors are material because they led the Commission to apply the incorrect legal test to Respondents' conduct and to improperly define the product market.

A. The Commission Erred In Finding That TOW Are Not a Competing and Viable Alternative Source Of Chassis

The Decision failed to take into account significant record evidence in its review of chassis-modeling preferences and the increasing prevalence of TOW in the geographic markets that are the focus of the proceeding. In assessing whether alternatives to the various forms of existing chassis arrangements in the subject markets exist (i.e., whether the practices are exclusive), the Commission erroneously determined that, “[i]n most situations, motor carriers do not have a viable alternative to paying the price the designated IEP imposes. Chassis are a necessity and substituting trucker-owned wheels is generally not economically feasible.” Decision at 45. It also concluded, relying on erroneous statistics contained in Complainant’s expert report, that “trucker-owned wheels are uncommon.” Decision at 40. In fact, uncontroverted evidence in the record confirms that the opposite is true. This conclusion not only ignored facts in the record but also reflects a fundamental misunderstanding of what is actually occurring in every major US intermodal market – namely, that regardless of an ocean carrier’s designation of a given IEP, motor carriers frequently utilize TOW as an alternate source of chassis. The conclusion that motor carriers cannot -- or do not -- self-supply chassis therefore represents a substantive error of material fact.

In concluding that TOW are “uncommon,” the Commission cited to the report of Dr. Langenfeld who indicated that “only 5% of the U.S. maritime chassis fleet was trucker-owned, and most motor carrier movements were associated with daily chassis usage.” Decision at 40 (citing Langefeld Report ¶¶ 45-51). In addition to the fact that it is an aggregated national number which provides only very limited insight as to viability or prevalence of TOW within the specific geographic markets defined by the Commission, this figure is contradicted by evidence in the record and, in any event, fails to account for significant subsequent growth in TOW.

The Decision ignored multiple pieces of contrary evidence in the record that showed the prominence of TOW as an alternative source of chassis. For example, the record indicates that by January of 2021, 45% of all gate moves at Georgia Port Authority terminal (i.e., Savannah) were performed using TOW and that this had increased from 20% a few years prior. CX00005367. Indeed, even Dr. Langefeld noted that Savannah (one of the four markets relevant to the Decision) is a market where use of TOW is a viable option. CX00001288 (“long-term leases or ownership may make sense for motor carriers....within a particular geographic market like Savannah.”). Why Savannah is different than any other “geographic market” (e.g. Memphis, Chicago, LA/LB) is not explained in any meaningful manner.

The business review letter submitted to the Department of Justice by the IEPs in 2014 indicated that there was a chassis fleet of approximately 110,000 chassis in LA/Long Beach at the time, with approximately 19,000 of those chassis controlled by motor carriers. CX00003861; CX00003886. This means that even as of 2014, roughly 17% of chassis in the LA/Long Beach market were TOW. *Id.* Today, the widespread use of TOW in the LA/LB market is beyond question.² In short, looking specifically at markets under analysis in the Decision, the finding that TOW are “uncommon” is plainly incorrect.

Evidence in the record also demonstrates that the use of TOW has grown substantially. In its March, 2021 report, the Government Accountability Office (“GAO”) indicated that one port representative interviewed by GAO estimated that TOW accounted for 60% of all container moves through September 2020, up from about 40% in 2014. Two ocean carriers told GAO that container moves at ports in South Florida are fully performed using TOW and an IEP estimated that TOW

² See Ari Ashe, Truckers fighting ILWU, LA-LB terminal operators over chassis paperwork proposal, J. of Commerce (Dec. 13, 2023)(available at https://www.joc.com/article/truckers-fighting-ilwu-la-lb-terminal-operators-over-chassis-paperwork-proposal_20231213.html).

may account for one-third to one-half of chassis moves nationwide. CX00001976. At the Port of Virginia, approximately 15% of moves are performed using TOW. CX00001974. Thus, the Commission's reliance on the inaccurate and distorted view of the prevalence of TOW presented by Complainant's expert lead it to wrongly conclude that TOW are not a commonly-utilized option.

The record reflects the substantial use of TOW. Looking specifically at motor carriers whose owners or officers are involved in the leadership of Complainant IMCC and/or NACPC (the IEP cooperative formed by motor carriers), the evidence of such ownership/leasing in the record includes:

- A motor carrier who had no less than four (4) leasing agreements, including for daily chassis usage, with three (3) different IEPs (dated May 1, 2020, April 2018, April 2021, and 2019-2020) in a variety of CCM and proprietary pool locations. CX00002757-58; APP0330-34; APP0335-36; APP0337-50.
- Another motor carrier that entered into an agreement with a IEP for itself and 23 subsidiary/partner companies in March 2020 . CX00003220-25.
- A third motor carrier owns approximately 2,000 chassis and long-term leases approximately 5,000 chassis. Reitzes p. 14, ¶ 33, citing M. George Depo at pp. 29-31.
- A fourth motor carrier leases all of its chassis. CX00001538, citing deposition testimony.
- A fifth motor carrier owns or long terms leases 1,150 chassis, COX00001538, citing deposition testimony.

The foregoing facts of record, which relate to and were provided by members of the Complainant association – the very same Complainant that has somehow convinced the Commission that TOW is not a viable option despite their members' own heavy reliance on TOW – show that the use of TOW is not something that might happen “in theory” (Decision at p. 40), but is a viable alternative

to using pool chassis.³ In light of the substantial evidence in the record regarding the use of TOW, the Commission's finding that it is not an economically feasible alternative upon which motor carriers can (and do) rely is erroneous. At the very least, the Commission should seek further information on this fundamental point that is central to its Decision.

B. The Commission Erred In Finding Respondents' Practices Limit Chassis Choice For Merchant Haulage

The Decision found that Respondents' rules and practices are unreasonable when motor carriers have no choice of providers. Decision at 2. Implicit in this ruling is a finding that the ocean carrier Respondents' arrangements for chassis render motor carriers unable to select a provider. As explained below, this finding is a substantive error of material fact with respect to the vast majority of chassis usage agreements insofar as merchant haulage is concerned.

Complainant's expert witness characterized 73 separate chassis usage agreements as either exclusive or preferred/default/dedicated. CX00001320-1321. However, if one examines the 43 agreements on this list that cover one or more of the four locations that have been the focus of this proceeding and which were in effect at the time of briefing, only five (5) can be said to be exclusive with respect to merchant haulage movements. The other 38 – or 88% of the agreements – were non-exclusive with respect to merchant haulage. It should also be noted that some of the chassis usage agreements which Complainant's expert identified as “exclusive” contain a provision along the following lines:

...nothing herein is intended to prevent User's Motor Carrier or beneficial cargo owner (“BCO”) customer from electing to use another chassis provider's chassis in a Co-Op Pool that permits “trucker choice.”

³ These facts also demonstrate that Dr. Langenfeld's opinion on TOW is incorrect and calls into question the Commission's uncritical reliance on his opinions. The Commission's Decision also failed to consider the opinions of Respondents' second expert, Dr. James Reitzes, who offered significant evidence rebutting many of Dr. Langenfeld's conclusions. This is particularly true with respect to the appropriate product market that should have been considered by the Commission. See Reitzes, ¶ 15 (Langenfeld market definition suffers shortcomings, including lack of analysis of ability of motor carriers to self-supply chassis).

CX00005837. As discussed in the next section of this Petition, evidence in the record shows that existing chassis arrangements were not just reasonable in providing choice in principle, but that they also afforded motor carriers a choice of providers in practice.

C. The Commission Erred In Finding That The Record Was Unclear With Respect To Chassis Choice

The Commission committed a substantive error of material fact in finding that the record was unclear with respect to requests for, and grants or denials of, choice. Decision at 32.

The report of MICP Capital, which the Decision regrettably and unjustifiably disparages, summarizes the facts relating to choice based on evidence in the record of this proceeding. That summary, which appears at CX00001545-49 in the record, can be paraphrased as follows:

Carrier A: Allows “open choice” since December 11, 2018.

Carrier B: Allows choice upon request. There is no evidence of any request ever having been denied.

Carrier C: Provides chassis to motor carrier without daily usage charge during free time; motor carrier free to furnish chassis of its choosing.

Carrier D: Policy of approving all choice requests. There is no evidence of any request ever having been denied.

Carrier E: Supported choice but was thwarted by the IEP.

Carrier F: Allows choice upon request. Typically forwards requests to IEP for approval or negotiation with requesting motor carrier.

Carrier G: Provides chassis to motor carrier without daily usage charge. Motor carriers can use own chassis.

Carrier H: Grants choice upon request. Deferred several requests while negotiating a chassis usage contract, but resumed granting requests upon conclusion of the contract.

Carrier I: Approves choice upon request. There is no evidence of any request ever having been denied.

Carrier J: Approves choice upon request. There is no evidence of any request ever having been denied.

The foregoing does not represent opinion or conjecture – it is based on citations to evidence in the record of this proceeding.

Statistical evidence in the record of this proceeding substantiates that choice was widely available and widely used in CCM pools. The percentage of merchant haulage moves in CCM pools which moved under chassis choice increased from 1.15% in 2014 to 12.77% in 2021. CX00001549; CX00006145. Given this fact, finding the record with respect to choice to be unclear is a substantive error of material fact.

Indeed, even when choice was theoretically not available, the record demonstrates that motor carriers were not constrained in practice. The record includes direct testimony about instances in which motor carriers used a pool chassis, were billed by and paid their provider of choice, and simply refused to pay the ocean carrier’s “exclusive” provider. At least three motor carriers paid usage to NACPC regardless of CCM usage allocations. CX00002447. When asked how this apparent dispute was resolved, the executive of one of the motor carriers testified “So, to my knowledge, we never got billed anymore or I would have heard about it.” APP1880.⁴

D. The Commission’s Findings Regarding Chassis Sourcing Constitute Errors of Material Fact

The Commission’s conclusion that Respondents’ practices are unlawful appears to be based on a finding that pool chassis furnished by the ocean carrier’s exclusive or default provider are the only potential source of chassis for a motor carrier when chassis choice is not available.

⁴ The Commission stated that “CCM allocation rules allow an IEP to charge the ocean carrier’s customer for chassis usage regardless of which IEP actually owns the equipment used.” Decision at 7. In fact, the CCMP Operations Manual is silent as to IEP billing for chassis usage. The sole purpose of the CCMP Operations Manual is to recover pool costs from contributors of equipment to the pool on a cost pass through basis. CCM does not have any involvement in billing practices by IEPs. It was for this reason that CCM played no role in the disputes referenced herein. In other words, motor carriers were able to exercise choice, the CCMP Operations Manual and enforcement thereof played no part in the billing for chassis usage, and the motor carrier utilized a provider of its own selection without adverse consequences.

In reaching this conclusion, the Commission relied on Complainant's expert's representations that "designating an exclusive chassis provider effectively shuts out potential competitors" and that "[m]otor carriers cannot divert their business to a competitor unless they first obtain permission from the ocean carrier." Decision at 44. However, these statements fail to account for the variety of options available to motor carriers even in situations when choice is not available within a chassis pool.

As explained above, regardless of which of the various models of pools are employed in a region, TOW are a viable alternative. In addition, motor carriers are able to obtain chassis from other non-pool sources (e.g., NACPC premium pool, from contributory pools or proprietary pools operating within the same market as each other, or direct relationships with chassis providers). Indeed, with respect to so-called grounded facilities (in which the container is stored on the ground or stacked with other containers), there is absolutely no impediment to a motor carrier entering the facility with a chassis it has obtained from any source it chooses to retrieve a container. In short, even accepting *arguendo* that an ocean carrier's arrangements within a chassis pool may complicate a motor carrier's ability to utilize a different provider from within the pool in limited instances, there is absolutely nothing that limits the motor carrier's ability to source a chassis from outside of the pool.⁵ As such, it was a material error of fact for the Commission to find that ocean carrier practices restrict a motor carrier's ability to utilize a provider other than the ocean carrier's designated provider.

⁵ Even with respect to wheeled facilities, the significant growth in TOW in recent years suggests that any additional time or expense associated with use of TOW at such facilities is not prohibitive.

E. The Foregoing Errors Of Fact Are Material

The foregoing factual errors are material because they caused the Commission to improperly define the relevant product market and to apply an improper legal test to evaluate the complained of practices.

The Commission erred in finding that TOW are not a viable alternative to daily chassis usage which in turn caused it to incorrectly define the relevant product market as daily chassis usage. Decision at 41. As TOW are, in fact, a viable alternative to daily rentals, TOW should have been included and analyzed as part of the relevant product market. Because daily chassis usage excludes a significant portion of the relevant product market, the Decision mistakenly determined that motor carriers are harmed and overstated the effect of the complained of practices. In short, the Decision's analysis is incomplete, flawed, and should be reconsidered.

As to the finding that the Respondent carriers' practices constitute exclusive arrangements, an arrangement is not exclusive if a user has viable alternatives to the arrangement. The errors of fact discussed above are material because they show that motor carriers had viable alternatives to being billed for use of a pool chassis by the allegedly "exclusive" provider of the ocean carrier whose container was being transported. Nevertheless, the Commission compounded its error by applying an inappropriate legal test to determine the reasonableness of Respondents' practices.

The Commission categorized Respondents' current chassis practices as exclusive arrangements⁶ and applied the reasonableness test for exclusive arrangements articulated in

⁶ While the Commission insisted that its analogy to other cases involving exclusive practices was an apt one, none of the decisions it relied upon involved a scenario where there were readily available and widely utilized alternatives to the complained of practice. Rather, those cases all involved truly captive markets. *California Stevedore Ballast Co. v Stockton Port District (Stockton)*, 7 F.M.C. 75, 81 (1962) can be distinguished because it addressed a situation wherein the port had "the exclusive right to perform all the usual or necessary dockside and other wharfing and stevedoring services" for loading and unloading grain and other bulk materials at the Port. Here, there is no monopoly where motor carriers may collect a chassis at the cargo's location or bring a chassis to retrieve the cargo from its location through a variety of provisioning options. In *Perry's Crane Serv., Inc. v. Port of Houston Authority of Harris County* 19 F.M.C. 548 (FMC Feb. 25, 1977), limitations were placed on the provision of services and the provider

Petchem, Inc. v. Canaveral Port Authority, Docket No. 84-28, 1986 WL 170038, 28 F.M.C. 281, 296 (FMC Mar. 28, 1986), *aff'd*, *Petchem v. Fed. Mar. Comm'n*, 853 F.2d 958 (D.C. Cir. 1988).

Under this test, exclusive arrangements are deemed to be generally undesirable and to be unlawful under the Shipping Act absent justification by their proponents. Decision at 37.

The facts here show that alternatives available to motor carriers with respect to merchant haulage – TOW (owned, long-term lease and daily rental), grounded locations, and extensive availability of chassis choice – prevent the existing chassis arrangements from being exclusive. Accordingly, the burden should at all times remain on Complainant to prove that Respondents' conduct was unreasonable instead of a presumption of unlawfulness which must be overcome by Respondents. Because reasonableness is a factual issue,⁷ the Commission's application of the incorrect legal test led to an erroneous decision in favor of Complainant.

F. The Commission Erred In Finding Chassis Supply Will Be Unaffected By The Decision

Respondents argued that the practices challenged in this proceeding were reasonable because they are necessary to ensure an adequate supply of safe chassis. The Commission rejected this argument, saying:

Respondents do not point to statistics or expert evidence indicating the likelihood that the scenario they paint of supply chain disruption, inadequate chassis supplies, or other difficulties stemming from the cease-and-desist order will actually occur. While a period of readjustment is certainly possible if ocean carriers stop using exclusive arrangements, it is equally possible that the chassis

could bump services that were ongoing and provide them instead. The port's practice of bumping crane operators in *Perry's Crane* is not analogous to any conduct here; even in a wheeled facility, a motor carrier has the right to flip the cargo to a chassis of the motor carrier's choosing without interference. A reasonable view of the evidence in this case could not support a finding of a captive market in these locations.

⁷ *Interpretative Rule on Demurrage and Detention Under the Shipping Act*, 85 Fed. Reg. 29638, 29647 (May 18, 2020)(guidance of interpretative rule not inconsistent with case-by-case adjudication of reasonableness, especially where Commission will consider all arguments raised in individual case); *New Orleans Stevedoring Company v. Board of Commissioners of the Port of New Orleans*, 2001 WL 865692 (Docket No. 00-11)(ALJ 2001)(determination of reasonableness largely dependent upon specific facts rather than broad generalizations), *aff'd* 2002 WL 33836158 (FMC 2002); *All Marine Moorings, Inc. v. ITO Corporation of Baltimore*, 27 S.R.R. 539, 545 (FMC 1996).

supply market will adjust within a reasonable time frame and reach a new equilibrium. Changing which provider supplies the chassis will not alter traffic volume or demand—the same number of chassis will still be required—but who supplies them will be open to competition.

Decision at 71.

The Commission’s prediction here is baseless. The market’s inability to efficiently match demand for chassis with supply has been a topic of focus at the Commission and in Congress for several years. The Commission observed that “[i]t is possible to infer that designating an exclusive provider gives the IEPs some assurance of minimum volume or demand at particular locations which lets them predict the number of chassis needed to serve that demand and gives them some assurance of a predictable revenue stream” and that “IEPs would not have the built-in assurance they have under their exclusive designation arrangements with the ocean carriers” (Decision at 59). And yet, the Commission fails to acknowledge that it is precisely this increased uncertainty with respect to the utilization of their assets that will drive the IEPs, like any rational economic actor, to take actions to incur less risk by committing fewer assets to a given market.⁸

The Commission’s discussion of alternate potential outcomes with respect to chassis supply is baseless. Decision at 59. The Commission provides no explanation as to how motor carriers will ensure chassis of their choosing are in place for merchant haulage moves at wheeled

⁸ By way of illustration, the Commission’s analysis assumes that because there are 100 containers to be moved in a particular location, the market will always operate to ensure that there are 100 chassis available at that location to move them, regardless of the model for provision of chassis in play. This is an overly simplistic and flawed assumption and inconsistent with the manner in which the chassis market has functioned historically. See GAO Report, p.9, CX00001974 (citing an IEP representative who explained that, “when chassis availability issues occur, there is generally a wider scale issue with chassis supply and demand being unbalanced.”). As rational for-profit entities, chassis providers don’t supply markets based on their peak potential asset utilization. Rather, the supply is something less than peak. This dynamic is countered by large customers committing large volumes over the length of a term contract. Where the business must be captured on a daily rental basis from many smaller and less financially secure entities, business risk increases. It is this risk of unutilized assets that will drive down the available supply of chassis in the market. In short, the “new equilibrium” the market will find will involve fewer chassis, increased prices, and decreased efficiency and fluidity.

facilities where containers are unloaded to chassis prior to a motor carrier's arrival. Similarly, the Commission offers no insight into how railroads will differentiate between merchant haulage and carrier haulage containers as they unload trains. While the Commission is willing to dismiss the above concerns as issues that the "market" will solve by finding "equilibrium," this ultimately is nothing more than a hope that solutions will present themselves at some undefined point in time. In short, the Commission has simply relied on conjecture to dismiss conjecture.⁹ The Commission's conclusion is a material factual error because it assumes a future based entirely on speculation. These disputed questions of fact as to the impact of the Decision on the supply of chassis have not and cannot appropriately be dealt with at the summary judgement stage.

G. The Commission Made Three Substantive Errors In Fact With Respect To Chassis Pricing

The Commission made three substantive errors of material fact with respect to chassis pricing.

The first error is the failure to comprehend the significance of motor carriers marking up the amounts they pay for the use of chassis substantially. There is undisputed evidence in the record that motor carriers can and do charge more to their customers – shipper customers of

⁹ It also bears mentioning that the Commission erred in its analysis of a factual error made by the ALJ with respect to the interest of motor carriers in ensuring an adequate supply of chassis. Decision at 45, fn 28. Specifically, in finding that the ALJ did not err in stating that motor carriers share the general objective of ensuring an adequate supply of chassis, the Commission found that "Motor carriers, like ocean carriers, plainly have a vested interest in ensuring an adequate supply of chassis so their operations can function smoothly." *Id.* Like the ALJ, the Commission mistakes the interest of the motor carriers in the supply of chassis for evidence showing that the motor carriers have the cargo volume, financial resources, and willingness to enter into contracts that will ensure that supply. Such a finding would be unsupported by the record. Furthermore, it would directly contradict the Commission's reliance on the Complainant's expert to conclude that motor carrier "economic realities" make TOW unviable because it doesn't make sense for motor carriers to make long term financial commitments and take on the risk of unutilized assets sitting idle and that such commitments may not be possible at all for smaller carriers that lack capital or sufficient revenue. Decision at 41. In short, either it would not be viable for motor carriers to enter into the contracts and make the financial commitments and usage guarantees necessary to ensure that chassis providers are willing and able to deploy a sufficient supply of chassis to meet demand or the Commission's finding that TOW are not a viable option cannot be correct.

ocean carriers in merchant haulage moves – for chassis than they pay a provider to lease them. See, e.g., APP0163-164; APP0196-0228; CX0000165, ¶ 59; CX00001550-1552. The ability of motor carriers to mark-up chassis rates and collect the marked-up rate from shippers is evidence that the underlying rates are reasonable. If, as Complainant argues and the Commission apparently believes, the alleged lack of choice somehow led to inflated daily chassis hire rates, then presumably motor carriers would have a limited or no ability to mark-up those rates.

The reasonableness of the daily chassis hire rates (which are set by the IEPs and not the ocean carriers nor any OCEMA contributory pool) is reinforced by the second undisputed fact the Commission disregarded: that the ratio of carrier haulage moves to merchant haulage moves has remained relatively constant over time. Exhibit 4 to the report of Dr. Langenfeld shows this is the case. CX00001319. As Exhibit 4 shows, the percentage of cargo moving via carrier haulage with various carriers in various locations remained constant or decreased over time. *Id.* If, as the Commission incorrectly found, the alleged lack of choice produced inflated chassis rates for merchant haulage and deflated rates for carrier haulage, then motor carriers would not have been able to mark-up chassis rates because shippers (who are the only ones fully aware of the total cost of both merchant haulage and carrier haulage) would have shifted use from merchant haulage to carrier haulage. However, Complainant’s own data shows that shippers did not modify their use.

The Commission mistakenly characterized this argument as relating purely to harm when in fact it is a factual point that undermines a central assumption by the Commission.

Respondents’ Exceptions styled the argument as “Absence of Harm to IMCC Members Is Probative of Reasonableness.” By improperly dismissing this argument on the grounds that it is precluded by the direct purchaser rule, the Commission committed a substantive error of material

fact with respect to the effect of an alleged lack of choice on chassis pricing. That error is material in that it goes to the issue at the heart of this proceeding – reasonableness.

Third, the Commission erred in finding that greater choice will result in lower chassis rates for merchant haulage moves. The Commission appears to have adopted Dr. Rodrigue’s conclusion that “freeing motor carriers from choice constraints” will lower chassis rates for merchant haulage. Decision at 48. However, Dr. Rodrigue concluded no such thing. Dr. Rodrigue stated that price competition among the IEPs “could” reduce prices and that by using choice motor carriers “may” be able to obtain lower prices for merchant haulage moves. Rodrigue, ¶ 99, CX00001418. The Commission’s Supplemental Finding of Fact #36 reflects this speculation by saying that motor carriers would have the “potential” to negotiate and contract for chassis usage rates.¹⁰ It is clear from the language of Rodrigue’s report that his conclusions in this regard are pure speculation and guesswork. There is not a shred of factual evidence supporting this view. Thus, the Commission’s conclusion is a substantive error of material fact.

That the Commission’s conclusion is in error is confirmed by the conflict between the Commission’s finding and the ALJ’s finding that requiring that the status quo be altered might actually increase the rates for chassis usage. See Initial Decision at 35, *compare* Decision at 48. This error in fact is material because it is a basis for finding of harm, which is one of the elements of a prima facie case of unreasonableness.

¹⁰ As noted above and reflected in the record, motor carriers can and do negotiate for chassis usage rates under the status quo.

IV. THE COMMISSION'S DECISION CONTAINS FINDINGS AND CONCLUSIONS WITH RESPECT TO THE POOL OF POOLS THAT WERE NOT BRIEFED OR ADDRESSED BY THE PARTIES

The Initial Decision of the ALJ correctly observed that “(t)he parties do not sufficiently explain how the POP (Pool of Pools) box rules work in their briefs.” I.D., p. 54 Nevertheless, the I.D. went on to make findings on the Pool of Pool’s operations and concluded:

Ocean carriers, through selecting an IEP for themselves in the POP, may not obligate motor carriers to utilize the same IEP for MH shipments. Motor carriers transporting MH shipments in LA/LB should have the right to select the chassis provider of their choice.

Initial Decision at 55. The I.D. went on to hold:

Respondent ocean carriers shall not take any action which limits a motor carriers’ ability to utilize the chassis provider of their choice for MH. As requested by IMCC, Respondent ocean carriers shall not extend or continue their contracts with an IEP in the POP while motor carriers cannot unilaterally elect a different IEP of their choice for MH.

Id.

In challenging the ALJ’s holding, the amicus filed by the IEPs emphasized the Initial Decision’s shortcomings, focusing on the fact that it was based on conjecture and not facts:

The ID acknowledges that the parties did not explain the Pool of Pools sufficiently to allow a confident conclusion as to how it works. ID at 54. This is not surprising since Respondents do not operate the Pool of Pools, the IEPs do, and IMCC has little interest in accurately describing the competitive realities behind the relief it seeks. Rather than defer any ruling at the summary disposition stage in face of this admittedly inadequate presentation, the ID made its own suppositions as to how the Pool of Pools operates. In doing so, the ID incorrectly characterizes the Pool of Pools...

Dkt No. 146, Brief Amici Curiae of Direct Chassis Line, Inc., Flexi Van Leasing, LLC, and Interpool, Inc. D/B/A/ Trac Intermodal, p. 34

Rather than give the parties the opportunity to brief and develop a more fulsome record on this issue, the Commission affirmed the grant of summary judgment, apparently finding that there are no genuine issues of material fact despite an admittedly unclear factual record. In so

doing, the Commission devoted a mere three paragraphs to the Respondents' Exceptions and the IEPs' amicus before tersely affirming the Initial Decision's ruling with respect to the Pool of Pools in a single sentence:

The Commission denies Respondents' exceptions and affirms the ALJ's findings on the challenged practices applicable to the Pool of Pools."

Decision at 61.

Both the Initial Decision and the Commission's affirmance of same assume that the operation of the Pool of Pools is identical to that of a CCM pool. This assumption is misplaced, and both the ALJ and Commission were wrong to superimpose their understanding of the latter onto the Pool of Pools in reaching their respective holdings. If further briefing is permitted in order to more fully develop the record on its operation, the Pool of Pools will be shown to be fundamentally different from a CCM pool in terms of operating model, business rules, finances, governance, ownership of the pool, ownership of chassis, control of operations, and coverage of multiple private marine terminals. CCM-managed contributory pools are distinct single pools operated by a single manager whose rules are part of the record. In contrast, the Pools of Pools consists of three pools operated by three managers which work cooperatively under agreements with multiple marine terminals without any control or input from the Respondents – and do so under a Business Review Letter issued by the US Department of Justice.

In addition to these factual contrasts, unlike the CCM pools, there has been no briefing with respect to the operational rules of the Pool of Pools or the reasons why they are in place. It is the Respondents' understanding that under the billing rules in the Pool of Pools, the IEP which contracts with an ocean carrier for the provision of chassis will also contract with a motor carrier for merchant haulage moves and invoice the motor carrier for the use of chassis moving that ocean carrier's containers. Because of the unique characteristics of the San Pedro Bay port

complex, a Pool of Pools type structure is essential to the efficiency of those operations and that it may not be technologically, administratively, or operationally possible to provide for exceptions to that rule in the foreseeable future. Simply because CCM (operating under the auspices of an FMC Agreement) developed a system to administer choice within its cooperative pool structure, it cannot be assumed that three independent IEPs not under FMC jurisdiction in active competition with each other can do the same. What is certain is that Respondents do not have control over whether the creation of exceptions is possible and, if it is, the timeframe in which this might be functionally complete.

The cease and desist order issued by the Commission requires action on the part of the IEPs. There is no other means by which choice can be offered in the Pool of Pools (and there is no other interoperable pool in the LA/LB market). Moreover in one fell swoop, the Commission has decapitated the only interoperable pool in the LA/LB market, the largest and most complex port in the U.S. Thus, absent action by entities that neither the Commission nor the Respondents can control, the Commission has in effect peremptorily ordered the immediate withdrawal of all carriers from the Pool of Pools, which handles millions of cargo moves per year. At the same time, the Commission has recognized that careful analysis is required with respect to withdrawal from other, smaller interoperable pools. The Commission adopted a three part test with respect to other interoperable pools: (1) does the Commission have authority to decide whether an ocean carrier acted unreasonably or unjustly; (2) if so, whether a complainant has demonstrated actual harm that can be addressed by the Commission, either in the form of reparations or a cease-and-desist order; and (3) if the appropriate remedy is a cease-and-desist order, whether that order can issue and provide meaningful relief without requiring action or forbearance by non-regulated

entities. Decision at 62-63. As noted in the Introduction, the third part of this test was a new factor adopted by the Commission for the first time in the Decision.

With respect to this new factor as it relates to withdrawal from interoperable pools, the Commission stated:

Assuming, as Respondents contend, the IEPs operate independently and are not regulated by the Commission (i.e., not directly or indirectly controlled by ocean common carriers or operating under FMC-filed agreements), it is difficult to conceive in the abstract of how the Commission might structure injunctive relief that is meaningful while simultaneously avoiding directing the IEPs to act or refrain from acting. Since Respondents depend on chassis use agreements with IEPs and do not own the chassis used for carriage or merchant haulage, any relief the Commission awards would need to consider those constraints and frame the relief to require meaningful compliance from the ocean common carriers but not require action or forbearance by the IEPs who are outside the Commission's regulatory authority under Section 41102(c). Whether that is feasible will depend in part on how ocean common carriers have structured their relationship with the IEPs, and will need to be tailored to differences between regions where interoperable chassis pools are still operating versus locations where proprietary pools now exist and other location-specific conditions.

Decision at 63-4.

Pursuant to the foregoing, a decision on withdrawal from pools has been properly deferred until the record has been more fully developed before the ALJ. Ironically, even though the same issues and concerns are presented with respect to the Pool of Pools, i.e., independent operation of the Pool of Pools by the IEPs, the Commission's lack of jurisdiction over the IEPs and whether meaningful injunctive relief can be molded with respect to entities over which it does not have jurisdiction, the Commission has effectively issued injunctive relief with respect to the IEPs without giving the parties the opportunity to brief and develop a more extensive record on the issue.¹¹

¹¹ Indeed, the same is true with respect to all of the various chassis provision scenarios in which an ocean carrier has a chassis usage agreement with a chassis provider. On this basis, it would be appropriate to remand all of the issues dealt with in the Decision to the ALJ. In this regard, even Complainant envisaged a procedure in which the remedy would be crafted separately, and the ALJ agreed. See Initial Decision at 25 (summarizing IMCC's argument that relief

With no opportunity by the parties to brief the issue, without applying the foregoing test, and with no analysis or discussion whatsoever, the Commission affirmed the ALJ's finding with respect to the Pool of Pools in a single sentence. Decision at 61. Since relief with respect to the Pool of Pools raises the same issues as withdrawal from interoperable pools, the record should be fully developed and briefing on this issue should be permitted.

The test for granting relief at the Pool of Pools was not briefed by either Party and should accordingly be remanded for that purpose.

V. CONCLUSION

The Decision contains significant substantive errors of material fact with respect to the findings enumerated in the Introduction of this Petition. And, while the Commission correctly concluded that the complexity of ocean carrier arrangements with IEPs made it impossible to rule on the withdrawal issue at the summary judgement phase, it has failed to appreciate that the same complexities apply to the Decision's finding with respect to the Pool of Pools.

The Respondents' Petition for Reconsideration should accordingly be granted, the affirmation of the Initial Decision in its entirety be vacated, and the matter remanded to the Administrative Law Judge for further proceedings in light of findings that:

1. TOW are a viable source of chassis;
2. Chassis usage agreements, by their very terms, are not exclusive arrangements;
3. Chassis choice was widely available in CCM pools;
4. The CCM Operations Manual does not include rules which allow the IEP to bill the motor carrier for chassis usage; and

could be tailored to address non-party considerations); *see also id.* at 28-29 (noting that relief could be tailored and provide reasonable delays of effect to address complexities such as existing contract arrangements).

5. The Decision, if enforced, will negatively affect chassis supply.

In addition, the issue of whether a cease and desist order with respect to the Pool of Pools can provide meaningful relief without requiring action or forbearance by entities over which the Commission does not have jurisdiction should be remanded for further briefing.

Respectfully submitted,

COZEN O'CONNOR

By: /s/ Wayne R. Rohde

Counsel for Respondents¹²
Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
1200 19th Street N.W., Suite #300
Washington, D.C. 20036
(202) 463-2507

MANELLI SELTER PLLC

By: /s/ Deana E. Rose

Counsel for Respondent Yang Ming
Marine Transport Corporation
Deana E. Rose
1725 I Street NW., Suite 300
Washington, D.C. 20006
(202) 261-1016

DATED: March 14, 2024

¹² Other than Yang Ming Marine Transport Corporation.

VERIFICATION

JEFFREY F. LAWRENCE hereby verifies as follows:

1. I am the Executive Director and Secretary of the Respondent herein Ocean Carrier Equipment Management Association Inc.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge, information, and belief.

Dated: March 13, 2024

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Lawrence', written over a horizontal line.

Jeffrey F. Lawrence
Executive Director and Secretary

VERIFICATION

MICHAEL B. WILSON, hereby verifies as follows:

1. I am Chief Executive Officer at Consolidated Chassis Management, LLC.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: __3.14.2024_____

Respectfully submitted,



Michael B. Wilson
Chief Executive Officer
Consolidated Chassis Management, LLC

VERIFICATION

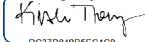
Kristi H. Thompson, hereby verifies as follows:

1. I am Senior Vice President and Chief Governance Officer at CMA CGM (America) LLC, as agent for CMA CGM S.A.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: March 14, 2024

Respectfully submitted,

DocuSigned by:



Kristi H. Thompson

SVP and Chief Governance Officer
CMA CGM (America) LLC,
as agent for CMA CGM S.A.

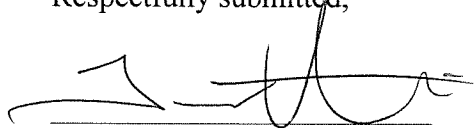
VERIFICATION

JAMES HOUGHTALIN, hereby verifies as follows:

1. I am the Chief Risk Officer of COSCO SHIPPING Lines (North America) Inc.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 3/14/2024

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Houghtalin', is written over a horizontal line.

Chief Risk Officer
COSCO SHIPPING Lines (North America) Inc.
on behalf of
COSCO SHIPPING Lines Co., Ltd.

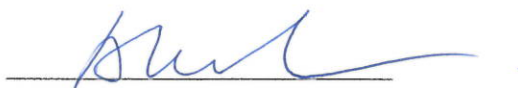
VERIFICATION

Alan Liu, hereby verifies as follows:

1. I am Jr. Vice President of the Logistical Department of Evergreen Shipping Agency (America) Corporation which is the North American Agent for Evergreen Line Joint Service Agreement, FMC No. 011982.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 3/13/24

Respectfully submitted,

A handwritten signature in blue ink, appearing to read 'Alan Liu', is written over a horizontal line.

Alan Liu

VERIFICATION OF RESPONDENT HAPAG-LLOYD AG

Björn Tschentschel hereby verifies as follows:

1. I am Senior Director Tax of Hapag-Lloyd AG.
2. I am authorized to make this verification on behalf of Hapag-Lloyd AG.
3. I hereby verify that the facts contained in the foregoing Response to Interrogatories are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: March 14, 2024



Name: Björn Tschentschel
Title: Senior Director Tax



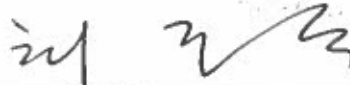
VERIFICATION

JUNSEOK CHOI, hereby verifies as follows:

1. I am the Chief Operating Officer at HMM Co., Ltd.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 3/14/2024

Respectfully submitted,



Junseok Choi
Chief Operating Officer
HMM Co., Ltd.

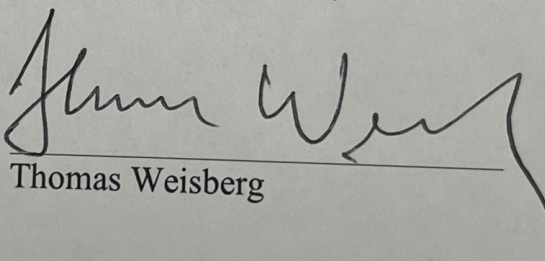
VERIFICATION

THOMAS WEISBERG, hereby verifies as follows:

1. I am employed as the Head of North America HSSE, Incident Management and Business Continuity, by Maersk, Inc.
2. I am authorized to make this verification on behalf of the Respondent Maersk A/S.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 3/14/2024

Respectfully submitted,


Thomas Weisberg

VERIFICATION

NICHOLAS HARGREAVES, hereby verifies as follows:

1. I am Legal Manager at Mediterranean Shipping Company (USA) Inc., acting as agent for MSC Mediterranean Shipping Company S.A.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: March 14, 2024

Respectfully submitted,



Nicholas Hargreaves
Legal Manager, MSC (USA) Inc.

VERIFICATION

RONNIE ARMSTRONG, hereby verifies as follows:

1. I am Vice President, Inland Operations at Ocean Network Express (North America) Inc.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 3/13/2024

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Ronnie Armstrong", is written over a horizontal line.

Ronnie Armstrong
Vice President, Inland Operations

VERIFICATION

LAURA SU, hereby verifies as follows:

1. I am Vice President at Wan Hai Lines Ltd.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: March 14, 2024

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Eric Chung', is written over a horizontal line.

Eric Chung, Deputy GM
signing on behalf of
Laura Su
Vice President
Wan Hai Lines Ltd.

VERIFICATION

WENJIN LEE, hereby verifies as follows:

1. I am Senior Executive Vice President, Logistics at Yang Ming (America) Corporation, the North American general agent of Yang Ming Marine Transport Corporation.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 3/14/2024

Respectfully submitted,



Senior Executive Vice President, Logistics

VERIFICATION

MARK E. NEWCOMB, hereby verifies as follows:

1. I am Vice President and General Counsel at ZIM American Integrated Shipping Services Co. LLC, the Agent for ZIM Integrated Shipping Services.
2. I am authorized to make this verification on behalf of the Respondent named above.
3. I hereby verify that the facts contained in the foregoing Petition for Reconsideration are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: 14 March 2024

Respectfully submitted,



Mark E. Newcomb
Vice President and General Counsel

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of March, 2024, a true and correct copy of the foregoing Respondents' Petition for Reconsideration of the Order Affirming Initial Decision was served via electronic mail on:

W. Stephen Cannon, Esq. (scannon@constantinecannon.com)
David D. Golden, Esq. (dgolden@constantinecannon.com)
Richard O. Levine, Esq. (rlevine@constantinecannon.com)
Seth D. Greenstein, Esq. (sgreenstein@constantinecannon.com)
Osob M. Samantar, Esq. (osamantar@constantinecannon.com)
Justin Wyatt Fore, Esq. (wfore@constantinecannon.com)
Paulette M. Rodriguez-Lopez (prodriguezlopez@constantinecannon.com)
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Daniel Vitelli, Esq. (dvitelli@constantinecannon.com)
Janice Johnson, Esq. (jjohnson@constantinecannon.com)
Counsel for Complainant Intermodal Motor Carriers Conference of the American
Trucking Associations, Inc.

Deana Rose, Esq. (drose@mdslaw.com)
Counsel for Respondent Yang Ming Marine Transport Corporation

A handwritten signature in black ink, appearing to read 'Kathryn Sobotta', is centered on the page. The signature is fluid and cursive, with the first name 'Kathryn' and last name 'Sobotta' clearly distinguishable.

Kathryn Sobotta